

1. Charges in the Indictment: The defendant ter MEER is indicted under Count I (Crimes against Peace), Count II (Plunder and Spoliation, constituting War Crimes), Count III (Slave Labor, constituting War Crimes and Crimes against Humanity), and Count V (Conspiracy to commit Crimes against Peace). The defendant took the stand in his own behalf (Tr. 6718 et seq., 7211 et seq., 12999 et seq., 13142 et seq.).

2. General nature of the evidence supporting these charges.

As the first technical leader of Farben, ter MEER bears a major responsibility for the activities of Farben during the period from 1933 to 1945. Through the instrumentality of Farben, and through the positions which he held in the financial, industrial, economic and political life of Germany, ter MEER bears a major responsibility for preparing Germany for aggression and for participating in this aggression once it had begun; for participating in reaping the spoils of this aggression through the plunder and spoliation of the chemical industries of occupied countries; and for participating in the illegal use and mistreatment of foreign workers and prisoners of war as slaves and in the murderous use of the inmates of concentration camps as tools in the furtherance of the German war effort.

These charges against the defendant ter MEER are proven beyond any reasonable doubt by the evidence which has been introduced in this case. This evidence is summarized in Parts I through VI of this Final Brief (including a Preliminary Memorandum Brief which is made a part hereof). A summary of specific activities contained in this section of the brief relating specifically to the defendant ter MEER sets forth certain highlights in the activities of the defendant ter MEER and shows the general nature of the field of activity in which he was engaged during the period 1933 to 1945. These specific instances should only be considered, however, in the light of what has been said in the whole of this Final Brief together with the Preliminary Memorandum Brief.